



CHAPTER cxxxi.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the County Borough of Waterford and the Counties of Kilkenny Tipperary (North Riding) and Waterford. A.D. 1911.

[18th August 1911.]

WHEREAS the Local Government Board for Ireland have made the Provisional Orders set forth in the schedule hereto under the Local Government (Application of Enactments) Order 1898 being an Order of the Lord Lieutenant in Council made pursuant to the Local Government (Ireland) Act 1898: 61 & 62 Vict. c. 37.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 1) Act 1911. Short title.

[Ch. cxxxi.] *Local Government Board (Ireland) [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.*

A.D. 1911.

SCHEDULE.

COUNTY BOROUGH OF WATERFORD.

Waterford. Provisional Order made in pursuance of Article 22 of the Local Government (Application of Enactments) Order 1898.

WHEREAS by subsection (1) of Article 22 of the schedule to the Local Government (Application of Enactments) Order 1898 (in this Order referred to as the Order of 1898) a county council are authorised to borrow in the manner and for the purposes in that subsection mentioned and by subsection (2) of the same Article it is provided that where the total debt of the county council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or if the proposed loan is borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the county the proposed loan shall not be borrowed except where it is for the purpose of a lunatic asylum or except in pursuance of a Provisional Order made by the Local Government Board for Ireland (in this Order referred to as the Local Government Board) and confirmed by Parliament and by subsection (12) of the same Article it is provided that the Article shall not apply in the case of a county borough council when acting otherwise than in their capacity as a county council:

And whereas the mayor aldermen and burgesses of the county borough of Waterford acting in their capacity as a county council and referred to in their Order as "the council" propose to borrow under the said Article loans which by reason of the limit imposed in that Article cannot be borrowed except in pursuance of a Provisional Order of the Local Government Board confirmed by Parliament:

And whereas it is expedient that a Provisional Order should be made under the said Article for the purposes of the proposed loans:

Now therefore We the Local Government Board in the exercise of the powers given to Us by Article 22 of the Order of 1898 and of all other powers enabling us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The council may from time to time in pursuance of this Order borrow under and in accordance with the provisions of Article 22 of the Order of 1898 loans not exceeding in the aggregate sixteen thousand pounds notwithstanding that at the time of such borrowing the total debt of the council (after deducting the amount of any

[1 & 2 GEO. 5.] *Local Government Board (Ireland) [Ch. cxxxi.]*
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sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or will if the loan is borrowed exceed the amount of one-tenth of the annual rateable value of the rateable property in the county borough.

A.D. 1911.

Waterford

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the council out of the poor rate.

3. Any expression to which a special meaning is assigned in the Local Government (Ireland) Act 1898 shall in this Order have the like meaning.

4. This Order may be cited as the County Borough of Waterford Order 1911.

Given under our seal of office this eleventh day of April in the year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

COUNTY OF KILKENNY.

Provisional Order made in pursuance of Article 22 of the Local Government (Application of Enactments) Order 1898.

Kilkenny.

WHEREAS by subsection (1) of Article 22 of the schedule to the Local Government (Application of Enactments) Order 1898 (in this Order referred to as the Order of 1898) a county council are authorised to borrow in the manner and for the purposes in that subsection mentioned and by subsection (2) of the same Article it is provided that where the total debt of the county council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or if the proposed loan is borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the county the proposed loan shall not be borrowed except where it is for the purpose of a lunatic asylum or except in pursuance of a Provisional Order made by the Local Government Board for Ireland (in this Order referred to as the Local Government Board) and confirmed by Parliament:

And whereas the county council of the county of Kilkenny (in this Order referred to as "the council") propose to borrow under the said Article loans which by reason of the limit imposed in that Article cannot be borrowed except in pursuance of a Provisional Order of the Local Government Board confirmed by Parliament:

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Kilkenny.

And whereas it is expedient that a Provisional Order should be made under the said Article for the purposes of the proposed loans :

Now therefore We the Local Government Board in the exercise of the powers given to Us by Article 22 of the Order of 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The council may from time to time in pursuance of this Order borrow under and in accordance with the provisions of Article 22 of the Order of 1898 loans not exceeding in the aggregate fifty-two thousand three hundred and twenty pounds notwithstanding that at the time of such borrowing the total debt of the council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or will if the loan is borrowed exceed the amount of one-tenth of the annual rateable value of the rateable property in the county.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the council and may be raised equally over the whole county.

3. Any expression to which a special meaning is assigned in the Local Government (Ireland) Act 1898 shall in this Order have the like meaning.

4. This Order may be cited as the County of Kilkenny Order 1911.

Given under our seal of office this eleventh day of April in the year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

COUNTY OF TIPPERARY (NORTH RIDING).

Tipperary
(North
Riding).

Provisional Order made in pursuance of Article 22 of the
Local Government (Application of Enactments) Order 1898.

WHEREAS by subsection (1) of Article 22 of the schedule to the Local Government (Application of Enactments) Order 1898 (in this Order referred to as the Order of 1898) a county council are authorised to borrow in the manner and for the purposes in that subsection mentioned and by subsection (2) of the same Article it is provided that where the total debt of the county council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or if the proposed loan is

[1. & 2 GEO. 5.] *Local Government Board (Ireland)*, [Ch. cxxxi.]
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borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the county the proposed loan shall not be borrowed except where it is for the purpose of a lunatic asylum or except in pursuance of a Provisional Order made by the Local Government Board for Ireland (in this Order referred to as the Local Government Board) and confirmed by Parliament:

A.D. 1911.

Tipperary
(North
Riding).

And whereas the county council of the county of Tipperary (North Riding) (in this Order referred to as "the council") propose to borrow under the said Article loans which by reason of the limit imposed in that Article cannot be borrowed except in pursuance of a Provisional Order of the Local Government Board confirmed by Parliament:

And whereas it is expedient that a Provisional Order should be made under the said Article for the purposes of the proposed loans:

Now therefore We the Local Government Board in the exercise of the powers given to Us by Article 22 of the Order of 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The council may from time to time in pursuance of this Order borrow under and in accordance with the provisions of Article 22 of the Order of 1898 loans not exceeding in the aggregate forty-two thousand two hundred and sixty-seven pounds notwithstanding that at the time of such borrowing the total debt of the council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or will if the loan is borrowed exceed the amount of one-tenth of the annual rateable value of the rateable property in the county.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the council and may be raised equally over the whole county.

3. Any expression to which a special meaning is assigned in the Local Government (Ireland) Act 1898 shall in this Order have the like meaning.

4. This Order may be cited as the County of Tipperary (North Riding) Order 1911.

Given under our seal of office this eleventh day of April in the year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

[Ch. cxxxi.] *Local Government Board (Ireland) [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1911.*

A.D. 1911.

COUNTY OF WATERFORD.

Waterford. Provisional Order made in pursuance of Article 22 of the Local Government (Application of Enactments) Order 1898.

WHEREAS by subsection (1) of Article 22 of the schedule to the Local Government (Application of Enactments) Order 1898 (in this Order referred to as the Order of 1898) a county council are authorised to borrow in the manner and for the purposes in that subsection mentioned and by subsection (2) of the same Article it is provided that where the total debt of the county council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or if the proposed loan is borrowed will exceed the amount of one-tenth of the annual rateable value of the rateable property in the county the proposed loan shall not be borrowed except where it is for the purpose of a lunatic asylum or except in pursuance of a Provisional Order made by the Local Government Board for Ireland (in this Order referred to as the Local Government Board) and confirmed by Parliament:

And whereas the county council of the county of Waterford (in this Order referred to as "the council") propose to borrow under the said Article loans which by reason of the limit imposed in that Article cannot be borrowed except in pursuance of a Provisional Order of the Local Government Board confirmed by Parliament:

And whereas it is expedient that a Provisional Order should be made under the said Article for the purposes of the proposed loans:

Now therefore We the Local Government Board in the exercise of the powers given to Us by Article 22 of the Order of 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The council may from time to time in pursuance of this Order borrow under and in accordance with the provisions of Article 22 of the Order of 1898 loans not exceeding in the aggregate eighteen thousand eight hundred and thirty-eight pounds notwithstanding that at the time of such borrowing the total debt of the council (after deducting the amount of any sinking fund and of any debt or capital liability incurred on account of lunatic asylums) exceeds or will if the loan is borrowed exceed the amount of one-tenth of the annual rateable value of the rateable property in the county.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this

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Order shall be paid by the council and may be raised equally over the whole county. A.D. 1911.
Waterford.

3. Any expression to which a special meaning is assigned in the Local Government (Ireland) Act 1898 shall in this Order have the like meaning.

4. This Order may be cited as the County of Waterford Order 1911.

Given under our seal of office this eleventh day of April in the year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

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